

1.

CASE #	CASE NAME	HEARING NAME
CVPS2407985	ZENDA ESTATE, LLC VS POLO CLUB MAINTENANCE ASSOCIATION	CROSS-DEFENDANT POLO CLUB MAINTENANCE ASSOCIATION'S MOTION TO STRIKE CROSS COMPLAINT

Tentative Ruling: Moot as result of ruling on demurrer.

Responding party to provide notice pursuant to CCP 1019.5.

Motion to Strike

The court may, upon a motion made pursuant to CCP §435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(CCP § 436.) On a motion to strike, as with a demurrer, “the court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Int’l Ins. Co. v. Superior Court* (1998) 62 Cal. App. 4th 981, 984, n. 2.) A motion to strike is the proper vehicle to attack a punitive damages claim where the facts alleged do not rise to the level of fraud, malice or oppression. (CCP §§ 435-436; *Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.)

Here, the instant motion is moot as result of Court’s ruling on accompanying demurrer that was sustained with leave to amend as to all causes of action.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2407985	ZENDA ESTATE, LLC VS POLO CLUB MAINTENANCE ASSOCIATION	CROSS-DEFENDANT POLO CLUB MAINTENANCE ASSOCIATION'S DEMURRER TO CROSS COMPLAINT

Tentative Ruling: Sustained.

Cross Complainants are granted one additional opportunity for leave to file a 1st Amended Cross Complaint within 10 days of this order becoming final.

Responding party to provide notice pursuant to CCP 1019.5.

This action arises from the claims alleged in Zenda Estates’ April 24, 2025 Second Amended Complaint (“SAC”) for: (1) Breach of Contract and (2) Declaratory Relief regarding the Settlement Agreement and Easement Agreement between Zenda Estates and PCMA.

Defendant PCMA filed a Verified Third Amended Cross Complaint on November 6, 2025 against Cross-Complainants and other Defendants alleging eight causes of action: (1) Breach of Contract, (2) Quiet Title, (3) Enforcement of Easement, (4) Express Indemnity, (5) Equitable Indemnity, (6) Declaratory Relief, (7) Petition for Writ of Mandate, and (8) Declaratory Relief C.C.P. § 526(a).

On January 23, 2026, Cross-Complainants filed the instant Cross Complaint alleging five causes of action: (1) Breach of Contract, (2) Interference with Contractual Relations, (3) Interference with Prospective Advantage, (4) Slander of Title, and (5) Invasion of Privacy.

Cross-Defendant now demurs to the 2nd, 3rd and 5th causes of action in the Cross-Complaint on grounds of failure to state facts sufficient to constitute a cause of action and uncertainty. Cross-Complainants contend that the cause of action are sufficiently alleged.

Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal. 4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

A special demurrer lies where a pleading is uncertain, ambiguous and unintelligible. (CCP § 430.10(f).) Demurrers for uncertainty, however, are typically sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

2nd Cause of Action - Intentional interference with contractual relations

In order to establish liability on a claim of intentional interference with contractual relations, a plaintiff must plead the following: "(1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage." (*Pacific Gas & Electric Co. v. Bear Stearns & Co.* (1990) 50 Cal.3d 1118, 1126, internal citations omitted.) According to the California Court of Appeals, "[a] contracting party cannot be held liable in tort for conspiracy to interfere with its own contract." (*Asahi Kasei Pharma Corp. v. Actelion Ltd.* (2013) 222 Cal.App.4th 945, 961.)

Accordingly, any of Cross-Complainants' claims for intentional interference in the Cross Complaint referencing the "Settlement Agreement" and/or "Easement Agreement," at issue are inapplicable to the cause of action because those agreements are contracts that PCMA is a party to, so such claims do not apply and fail to state facts sufficient for an intentional interference with contractual relations cause of action. Examples include:

In May 2024, PCMA and its new counsel intentionally interfered with the Los Palos/Zenda Owners' irrevocable, permanent, non-exclusive, appurtenant easement rights of ingress and egress as set forth in the Settlement Agreement and Easement Agreement. (Cross Complaint, pg. 7 ¶ 31), and

The Settlement Agreement and Easement Agreement between ZENDA ESTATE, ZENDA HOLDINGS and BALMORAL, and PCMA thereto are valid and binding contracts. (Cross Complaint, pg. 17 ¶ 79).

(See Cross Complaint, pg. 11 ¶ 49; pg. 12 ¶ 53, pg. 14 ¶ 58 and ¶ 59; pg. 15 ¶ 63 - 66; pg. 16 ¶ 78.)

Cross-Complainants fail to plead that a valid contract between any of the Cross-Complainants and a third party exists. The Cross Complaint states that “[w]hen ZENDA ESTATE sells the ZENDA ESTATE Property,” and “[i]f ZENDA HOLDINGS decides to sell the Property and/or if BALMORAL decides to develop the land . . .” all must disclose to all potential purchasers the existence of pending litigation regarding the Settlement and Easement Agreements, as well as the filed and released pendency of actions, PCMA’s Cross Complaint regarding the Settlement and Easement Agreement allegations towards Cross-Complainants, the alleged actions of individual HOA members, and the enforcement of the Settlement Agreement all render the properties “unsalable.” (Cross Complaint, pg. 10-11 ¶ 47; pg. 13 ¶ 54 – 57).

As noted by PCMA, the Cross Complaint also states that In May 2022, HARRIES put the HARRIES Property on the market for sale for \$2,700,000.00. Thereafter, the HARRIES received inquiries from real estate agents and potential purchasers about short term rentals and temporary use permits. Because the HARRIES were statutorily obligated to make certain disclosures, the HARRIES took their Property off the market . . . and further explains that the HARRIES “must now disclose the following to all potential purchasers . . .” reiterating the same points made as to Zenda Estates, Zenda Holdings, and Balmoral. (Cross Complaint, pg. 11 ¶ 50; pg. 12 ¶ 51).

The Cross Complaint continuously raises inapplicable claims by stating that Zenda Holdings stopped all short term rentals and events in 2024, and that Balmoral placed development plans which could now be cancelled “because of the litigation and unlawful recording of the Notice of Pendency of Action by PCMA.” (Cross Complaint, pg. 13 ¶¶ 54 -57).

The second element is not properly alleged. First, all of the contracts alleged are speculative, prospective contracts and not valid binding contracts, and second the allegations contain mere statements of knowledge with no facts.

The Cross Complaint alleges that “PCMA knew, understood and acknowledge that in or about February 2022, ZENDA ESTATE began applying for and receiving Permits from the City of Indio which allowed ZENDA ESTATE to rent the Property for Events . . .” (Cross Complaint, pg. 17 ¶ 80). The Cross Complaint also states that “PCMA knew, understood and acknowledge commencing in 2021, ZENDA HOLDINGS previously had applied for Permits from the City of Indio which allowed ZENDA HOLDINGS to rent the Property for Events [. . .]” (Cross Complaint, pg. 17 ¶ 82). Finally, the Cross Complaint makes a similar claim when stating that “PCMA knew, understood and acknowledge commencing in 2021, that BALMORAL was going to development the BALMORAL Property inclusive of, but not limited to, the construction of a small high-end residential development.” (Cross Complaint, pg. 18 ¶ 84). The allegations in the Cross Complaint simply allege that PCMA had knowledge of Zenda Estates’, Zenda Holdings’, and Balmoral’s contractual intentions without further facts to plead how PCMA had knowledge of the speculative contracts and to what extent if any.

“[A] cause of action for intentional interference with [a] contract requires an underlying enforceable contract. Where there is no existing, enforceable contract, only a claim for interference with prospective advantage may be pleaded.” (*PMC, Inc. v. Saban Entertainment, Inc.* (1996) 45 Cal.App.4th 579, 601.)

As to intentional acts and breach, these elements are not alleged because all of the contractual relationships alleged are speculative, prospective, and not valid binding contracts, and second because the allegations contain mere conclusory statements of interference with no facts as to how the alleged acts were designed to induce a breach or disruption of such relationships. The

Cross Complaint claims that “[w]ith knowledge that the ZENDA ESTATE [and the ZENDA HOLDINGS] applied and received Permits from the City of Indio which allowed ZENDA ESTATE [and the ZENDA HOLDINGS] to rent the Property for Events . . . PCMA interfered with those contracts between ZENDA ESTATE [and the ZENDA HOLDINGS] and those clients for certain [. . . events . . .]” (Cross Complaint, pg. 17 ¶ 81, ¶ 83).

Accordingly, the Cross Complaint fails to state facts sufficient to claim that PCMA’s alleged acts were intentional, were designed to induce a breach or disruption of the speculative contractual relationship between Zenda Estates or Zenda Holdings and the “clients” for the event rentals, and fails to intelligibly plead what allegedly interfering acts occurred on behalf of PCMA that lead to or induced a breach of the contractual relationships of such clients. The Cross Complaint further alleges that “[w]ith knowledge that BALMORAL was going to develop the BALMORAL Property inclusive of the construction of a small high-end residential development, PCMA interfered with BALMORAL’s construction by interfering the Settlement Agreement and Easement Agreement,” and as established above, a claim for intentional interference with contractual relations does not apply where it is claimed that the contracting party is allegedly interfering with its own contract. (Cross Complaint, pg. 18 ¶ 85) (*Asahi Kasei Pharma Corp.*, *supra*, 222 Cal.App.4th at p. 961.)

Even in an attempt to construe this allegation in the most liberal light possible, Cross-Complainants’ allegation here only points to prospective contractual relationships involving the respective parties, which furthers PCMA’s argument that Cross-Complainants facts are uncertain and unintelligible. Third, Cross-Complainants argue that PCMA had knowledge that Balmoral “would be developing the BALMORAL Property” and thus “PCMA interfered with BALMORAL’s construction by interfering the Settlement Agreement and Easement Agreement.” (MTD Opp., pg. 6.) Again, PCMA is left confused as to what facts were “properly” pled by Cross-Complainants to meet the elements of an Intentional Interference with Contractual Relations claim. PCMA’s alleged knowledge of Balmoral’s intentions to develop its respective property at some point in time in the future is an allegation that cannot be pled to prove a valid contract existed or that PCMA had knowledge of a valid contract between Balmoral and a third party regarding construction because this claimed contractual relationship is speculative and prospective at most. (MTD Opp., pg. 6.) Also, Cross-Complainants arguments of PCMA’s alleged interference with the Settlement Agreement and Easement Agreement are insufficient to meet any elements of an Intentional Interference with Contractual Relations claim because as discussed in PCMA’s Special Demurrer, “[a] contracting party cannot be held liable in tort for conspiracy to interfere with its own contract.” (*Asahi Kasei Pharma Corp. v. Actelion Ltd.* (2013) 222 Cal.App.4th 945, 961.) (PCMA MTD, pg. 6; MTD Opp., pg. 6.) Therefore, any of Cross-Complainants’ claims that PCMA intentionally interfered with the Settlement Agreement and/or Easement Agreement are inapplicable to the Second Cause of Action because those agreements are contracts that PCMA is a party to, so such claims do not apply and fail to state facts sufficient for an intentional interference with contractual relations cause of action. (PCMA MTD, pg. 6-7.) SUSTAINED

3rd Cause of Action - Intentional interference with prospective advantage

A claim for intentional interference with prospective economic advantage must contain five elements: “(1) the existence, between the plaintiff and some third party, of an economic relationship that contains the probability of future economic benefit to the plaintiff; (2) the defendant’s knowledge of the relationship; (3) intentionally wrongful acts designed to disrupt the relationship; (4) actual disruption of the relationship; and (5) economic harm proximately caused by the defendant’s action.” (Roy Allan Slurry Seal, Inc. v. American Asphalt South, Inc. (2017) 2 Cal.5th 505, 512 [213 Cal.Rptr.3d 568, 388 P.3d 800].)

Since the Cross Complaint contains nearly an exact replica of allegations in both the second and third causes of action (including the same exact numbering of the paragraphs), and since the

elements for the causes of action are inherently similar if not identical, PCMA states that arguments for elements two through five shall be incorporated in this argument and enhanced herein, except as to the first element because Cross-Complainants' ambiguous contractual relationships do not require proof in prospective advantage claims. (*Pacific Gas & Electric Co.*, *supra*, 50 Cal.3d at p. 1126.) (See Cross Complaint, pgs. 16 – 18 ¶ 78 – 87, and pgs. 18-20 ¶ 78 – 87). SUSTAINED

5th Cause of Action - Invasion of privacy.

A cause of action for invasion of privacy consists of two elements: “(1) intrusion into a private place, conversation of matter, (2) in a manner highly offensive to a reasonable person.” (*Sanders v. American Broadcasting Co.* (1999) 20 Cal.4th 907, 914 (internal citations omitted).) As to the first element, the Cross-Complainants must prove that the Cross-Defendant intruded “some zone of physical or sensory privacy surrounding, or obtained unwanted access to data about, the plaintiff,” but the element is not met merely when the plaintiff has been “observed, or even photographed or recorded, in a public place.” (*Sanders*, *supra*, 20 Cal.4th at p. 914-915.)

Cross-Complainants allege that “On July 1, 2025, PCMA installed a video camera and listening device outside the entrance to the Los Palos/Zenda Properties in order to illegally monitor persons entering and exiting the Los Palos/Zenda Properties.” (Cross Complaint, pg. 10 ¶ 43). Cross-Complainants also allege that “On July 1, 2025, PCMA installed a video camera and listening device outside the entrance to the LOS PALOS/ZENDA Development in order to illegally monitor persons entering and exiting the LOS PALOS/ZENDA Development.” (Cross Complaint, pg. 22 ¶ 85). Further, the Cross Complaint claims that “The Los Palos/Zenda Properties is walled and gated for the privacy of owners and their guests. PCMA installed video cameras pointed at the Los Palos/Zenda Properties for the sole purpose of harassing and intimidating the Los Palos/Zenda Owners and their guests to gain leverage in the civil litigation.” (Cross Complaint, pg. 10 ¶ 44).

In addition, the Cross Complaint states that “The video cameras and listening devices installed and maintained by PCMA intentionally intruded on [. . . Cross Complainants'] respective properties.” (Cross Complaint, pg. 22 ¶ 89). Cross-Complainants fail to plead the location of the alleged devices with certainty as the cross complaint has repeatedly referred to the alleged devices as installed “outside the entrance to the [LPZ] Properties,” and “outside the entrance to the [LPZ] Development,” and also as claiming that the LPZ Properties are “walled and gated for the privacy of owners,” but then stating the alleged devices intruded on LPZ owners’ “respective properties.” (Cross Complaint, pg. 10 ¶ 43 and ¶ 44; pg. 22 ¶ 85 and ¶ 89). The Cross Complaint is ambiguous as to the location of the alleged devices, and by inconsistently claiming that the alleged devices are outside the entrance gates of the LPZ properties, while also claiming that the alleged devices are outside the entrance of the LPZ development, so the true location or even proximate location is left to the imagination, thereby creating uncertainty in the private place that was allegedly intruded upon.

Also, as discussed by Cross-Defendant, to further create uncertainty, Cross-Complainants inconsistently claim that the LPZ properties are walled and gated for privacy, that the alleged devices were pointed at the LPZ properties, and intruded upon LPZ owners’ respective properties, while maintaining in several paragraphs throughout the Cross Complaint that the alleged devices were installed outside the entrance of the LPZ properties/development in order to monitor people entering and/or exiting the development. (Cross Complaint, pg. 10 ¶ 43, ¶ 44, ¶ 45; pg. 22 ¶ 85 and ¶ 89). Cross-Complainants claims create uncertainty as to whether the alleged devices could intrude upon the LPZ owners’ properties considering the claim that the LPZ development is “walled and gated,” and whether the alleged devices were capable of intruding upon the LPZ properties considering that the alleged devices were installed “outside the entrance of the [LPZ]

Properties . . . to monitor persons entering and exiting,” therefore, it is not likely that any of the LPZ residences exists outside the walled/gated enclosure outside the entrance of the development where the alleged devices have been allegedly installed. (Cross Complaint, pg. 10 ¶ 44, pg. 22 ¶ 85). Thus, the Cross Complaint fails to plead with specificity as to the location of the alleged devices that could meet the first element of an invasion of privacy claim.

The first element of an invasion of privacy cause of action also fails as the alleged intrusion occurs in a public place. (*Sanders, supra*, 20 Cal.4th at p. 914-915.) Cross-Complainants’ redundant reference to the entrance “OUTSIDE” the LPZ development, where the alleged devices were installed to allegedly monitor persons “ENTERING AND EXITING” the development, suggests that the alleged devices were installed in a manner to capture information in a public place. (Cross Complaint, pg. 10 ¶ 44, pg. 22 ¶ 85). The Cross Complaint discusses that the LPZ development itself is walled and gated for privacy, however, the Cross Complaint fails to state a claim as to how the area outside the entrance of the LPZ development is private. (Cross Complaint, pg. 10 ¶ 44).

Also, as to the first element, the Cross-Complainants must show an objectively reasonable expectation of privacy. In determining whether a reasonable expectation of privacy exists, courts have considered factors such as “(1) the identity of the intruder, (2) the extent to which other persons had access to the subject place, and could see or hear the plaintiff, and (3) the means by which the intrusion occurred.” (*Hernandez v. Hillsides, Inc.* (2009) 47 Cal.4th 272, 286-287.) The Cross-Complainants merely claiming that LPZ owners “had a reasonable expectation of privacy in each own their respective property as legally described herein,” is not factually sufficient to constitute a cause of action for an invasion of privacy as the allegations of intrusion are based upon an ambiguous location that does not interfere with the LPZ properties, but instead outside the entrance of the development as claimed and quoted above, and the considered factors indicating a reasonable expectation of privacy have not been plead, nor has the Cross Complaint “legally described herein,” and certain or intelligible descriptions. (Cross Complaint, pg. 22 ¶ 83).

The Cross Complaint fails to state facts sufficient to constitute a cause of action as to the first element by claiming that “HOA members (some drunk) have harassed Los Palos/Zenda Owners, young women working the gates at events,” which does not clearly indicate that PCMA is the intruder in the alleged activities, nor how the “HOA members” described were operating under the scope of authority of PCMA during the course of the alleged activities, thereby creating uncertainty as to how this allegation applies to PCMA. (Cross Complaint, pg. 11 ¶ 47(d); pg. 12 ¶ 51(e); pg. 13 ¶ 56(d)). Second, the Cross Complaint fails to state facts sufficient to address the extent to which PCMA had access to the private area due to the lack of certainty as to the location with only the mere reference to the alleged devices placed “outside the entrance to the Los Palos/Zenda Properties,” and without more facts the second element is not met because the extent of access outside the entrance of the development is not a private place. (Cross Complaint, pg. 10 ¶ 46). Third, the Cross Complaint fails to state facts sufficient to address the means by which the intrusion occurred where the Cross Complaint only repeatedly alleges that “PCMA installed a video camera and listening device outside the entrance to the LOS PALOS/ZENDA Development in order to illegally monitor persons entering and exiting the LOS PALOS/ZENDA Development,” which fails to indicate how the installation of the alleged devices and their alleged activities constitute an intrusion. (Cross Complaint, pg. 22 ¶ 85).

Finally, the Cross-Complainants surplusage language in redundantly asserting that PCMA’s installed the alleged devices “for the purpose of harassing and intimidating the Los Palos/Zenda Owners and their guests to gain leverage in the civil litigation,” is conclusory, and does not state a fact or plead with specificity as to any element of an invasion of privacy claim. (Cross Complaint, pg. 10 ¶ 45; pg. 15 ¶ 65 and ¶ 66). SUSTAINED